Lake County, Florida

Public Finance Feasibility Study

December 2023

LAKE COUNTY, FL

Board of County Commissioners
P.O. Box 7800 · 315 W. Main St., Suite 318 · Tavares, FL 32778-7800

October 24, 2023

Mr. Will Abberger
Vice President
Director Conservation Finance
The Trust for Public Land
306 North Monroe Street
Tallahassee, Florida 32301

Mr. Adam Snyder
The Nature Conservancy
120 19th Street North, Suite 200
Birmingham, Alabama 35203

Dear Mr. Abberger and Mr. Synder:

By this letter, Lake County requests technical advice and assistance from the Trust for Public Land and The Nature Conservancy in connection with our efforts to develop and sustain reliable, ongoing sources of funding for land conservation, open space, and natural area protection and stewardship.

As part of your advice and assistance, I understand you will conduct research with affected groups to develop recommendations for Lake County on strategies for supporting dedicated, ongoing sources of public funds for land conservation and parks.

We are interested not only in the factual information that you can provide, but also your opinions and recommendations on public funding measures available to us and strategies to enact such measures. That would include understanding the public's priorities and attitudes concerning land conservation, water quality, and natural areas—including parks, trails, and fish and wildlife habitat—and how the public would respond to different methods of presenting those issues.

Information provided to the Lake County will be public record as a matter of law. This request does not in any way commit public funds to the efforts of the Trust for Public Land and The Nature Conservancy related to this request, nor does it require public disclosure of any confidential information of either organization.

In addition, we would like to take this opportunity to request that you continue to be available to provide technical advice and assistance in this area and on related matters in the future.

Thank you.

Sincerely,

Kirby Smith
Chairman, Board of County Commissioners

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This work was completed at no cost to Lake County with generous support from Live Wildly and Doris Duke Foundation.

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Introduction

Trust for Public Land (TPL) is a national nonprofit that works to connect everyone to the benefits and joys of the outdoors. As a leader in equitable access to the outdoors, TPL works with communities to create parks and protect public land where they are needed most. Since 1972, TPL has protected more than 4 million acres of public land, created more than 5,364 parks, trails, schoolyards, and iconic outdoor places, raised $94.2 billion in public funding for parks and public lands, and connected nearly 9.4 million people to the outdoors.

Our Commitments

Quality parks and green spaces are fundamental for sustaining equitable, resilient communities. Access to nature and the outdoors—close to home, in the cities and communities where people live—is a matter of health, equity, and justice. That's why we work alongside communities across the country to create, protect, and steward the nature-rich places that are vital to human well-being. We're driven by four commitments:

- Climate: As climate change tightens its grip on communities across the United States, extreme heat, wildfires, storms, and flooding are growing more frequent and severe. Governments and nonprofits must help communities adapt and become more resilient, particularly those that have been marginalized and faced years of disinvestment. Land and land use present opportunities to mitigate the effects of climate change: new green spaces absorb flood waters; new and restored vegetation mitigates extreme heat; and land protection mitigates climate change by sequestering carbon in soil and in vegetation. These nature-based solutions are essential strategies for the climate crisis and deliver many collateral benefits for health, equity, community, jobs, and economic development.
- Community: Parks give people spaces to gather and build stronger communities that are better prepared to tackle social, health, and environmental challenges and to address historic and systemic inequities.
- Equity: Access to the outdoors is a fundamental human need, and all communities are stronger, healthier, and more connected when everyone is able to get outside and engage with nature.
- Health: Access to nature and the outdoors is a powerful public health strategy, and ought to be available to all people.

Conservation Finance

To help public agencies acquire land, build and improve parks, and fund park maintenance, TPL assists communities in securing public financing. TPL's conservation finance program offers technical assistance to elected officials, public agencies and community groups to design, pass, and implement public funding measures that reflect popular priorities. Since 1996, TPL has been involved in more than 650 successful ballot measures and dozens of statewide legislative campaigns creating $94.2 billion in new funding for parks, restoration, and land conservation across the nation. Voters have approved 83 percent of the ballot measures directed and supported by TPL. This includes 41 of 48 measures in Florida that went to the ballot since 1996. In 2020 we assisted with reauthorization of Volusia Forever, Volusia ECHO, and Conservation Collier. Most recently in Florida, TPL supported five successful measures in 2022: Alachua County, Brevard County, Indian River County, Nassau County, and Polk County.[1]

Lake County has asked Trust for Public Land to explore public funding options available for land conservation and trails in the county. Given the substantial investment of time and resources required for a successful conservation finance initiative, preliminary research is essential to determine the feasibility of

[1] The Trust for Public Land, LandVote, www.landvote.org

such an effort. This research provides a stand-alone, fact-based reference document that can be used to evaluate financing mechanisms from an objective vantage point.[2,3]

If county officials decide to pursue dedicated funding, then the finance option(s) should match political and fiscal realities in the county. Next steps might include testing voter attitudes toward a specific set of funding proposals. Trust for Public Land would recommend conducting a privately-funded public opinion survey that tests ballot language, tax tolerance, and program priorities of Lake County voters.

[2] The contents of this report are based on the best available information at the time of research and drafting, October and November 2023.
[3] This feasibility study is not a legal document and should not be relied upon as a legal opinion.

Executive Summary

At the request of the Lake County Board of Commissioners, Trust for Public Land has undertaken a feasibility analysis to explore public funding options to support land conservation in the county.

In Florida, local government funding for parks and recreation most often takes the form of budget appropriations, property taxes, general obligation bonds backed by property taxes, local sales taxes, and park impact fees. This study focuses on a general obligation bond and property tax as the best opportunity for financing the protection of natural areas and open space in Lake County.

- To raise funds for capital improvements, such as land acquisition, building construction and facilities improvements, local governments in Florida may issue bonds. In Lake County, for example, a $50 million bond would add about $4 million to the county's annual debt service and would cost approximately $21 per year for the average homeowner over the life of the bond (20 years). Federal regulations governing the issuance of tax-exempt bonds limit the use of proceeds to capital purposes. Voter approval is required.
- Debt instruments provide several advantages over pay-as-you-go funding, including the opportunity to make significant land acquisitions and investments in the near term, presumably before the price of land increases. If land prices are increasing faster than the annual interest rate, bonding can be a smart fiscal choice, and will in some cases save critical habitat from development. In addition, current and future residents share costs.
- County bonds for parks, recreation, and natural lands conservation have seen widespread support from voters throughout the state.
- In Florida, a single ballot question may authorize bonding authority and a millage levy, the excess of which can be used for operations and maintenance. The portion of the voted millage necessary to pay debt service must be treated as debt service millage (used only for capital purposes) and the excess portion is treated as general millage (may be used for maintenance and operations).

Next steps should include selecting the funding amount that best matches the needs and political realities in the county and testing voter attitudes toward a specific funding proposal. Trust for Public Land recommends conducting a public opinion survey that tests ballot language, tax tolerance, and program priorities of voters in Lake County.

Overview

Lake County is located in the center of the State of Florida. The county encompasses 954 square miles of land and over 200 square miles of lakes. The current estimated population is 277,035. There are fourteen municipalities within the county: Astatula, Clermont, Eustis, Frutland Park, Groveland, Howey-in-the-Hills, Lady Lake, Leesburg, Mascotte, Minneola, Montverde, Mount Dora, Tavares, and Umatilla. The municipalities account for just over 50 percent of the county's population. Clermont is the most populous city with 44,300 residents.

Demographics

Population	**Note**	**Lake County**	**Florida**
Population, Census, April 1, 2020		383,956	21,538,187
Population, Census, April 1, 2010		297,052	18,801,310
Population, percent change		28%	15%
Race and Hispanic Origin			
White alone, percent		82%	77.3%
Black or African American alone, percent	(a)	12.4%	16.9%
Asian alone, percent	(a)	2.4%	3.0%
Two or More Races, percent		2.3%	2.2%
Hispanic or Latino, percent	(b)	18.7%	26.4%
White alone, not Hispanic or Latino, percent		65.6%	53.2%
Housing			
Owner-occupied housing unit rate, 2015-2019		75.3%	66.2%
Median value of owner-occupied housing units, 2015-2019		$223,000	$232,000
Median gross rent, 2015-2019		$1,203	$1,218
Families & Living Arrangements			
Households, 2015-2019		149,455	7,931,313
Language other than English spoken at home, % age 5 years+, 2015-2019		15.3%	29.4%
Education			
High school or higher, percent of persons age 25 years+, 2017-2021		90.4%	89.0%
Bachelor's degree or higher, percent of persons age 25 years+, 2017-2021		25.3%	31.5%
Health			
With a disability, under age 65 years, percent, 2015-2019		10.3%	8.7%
Persons without health insurance, under age 65 years, percent		14.6%	16.3%
Income & Poverty			
Median household income (in 2021 dollars), 2017-2021		$60,013	$61,777
Per capita income in past 12 months (in 2021 dollars), 2017-2021		$31,968	$35,216
Persons in poverty, percent		10.0%	12.7%

Source: US Census Quickfacts

Notes: (a) Includes persons reporting only one race

(b) Hispanics may be of any race, so also are included in applicable race categories

Governance

The Board of County Commissioners is the principal legislative and governing body of the county. The Board consists of five member elected county-wide by district for staggered four-year terms. The Chair is elected by the commissioners for a one-year term to serve as the presiding officer. Three Board seats will be on the ballot in 2024.

Lake County Commissioners		
Name	**District**	**Term Expires**
Douglas Shields	1 Vice Chair	2024
Sean Parks	2	2026
Kirby Smith	3 Chair	2024
Leslie Campione	4	2026
Josh Blake	5	2024

Finances

Total governmental revenues were $415.4 million in 2022, and $427.6 million in 2021. Property taxes are the largest single source of revenue. Other taxes include sales tax, infrastructure sales tax, gas taxes, and tourist development taxes. Sales taxes are received from the state and can be used for any lawful purpose. Gas taxes are collected on fuel sold in the county and are used solely for road construction and maintenance. Infrastructure sales tax is the extra penny approved by voters and is used for infrastructure improvements such as buildings, roads, fire and sheriff vehicles or other capital. Tourist development taxes are collected from rental lodging and used to promote tourism in the county.

Total governmental expenses were $394.9 million in 2022 and $375.4 million in 2021. Public safety is the largest expenditure category at $193 million (49 percent); followed by general government at $104 million (26 percent). Expenditures for culture and recreation totaled $15.6 million and physical environment expenditures which includes natural resources were $2 million.

Sales Tax

In November 2015, Lake County citizens approved the renewal of the one-cent discretionary infrastructure sales tax with 71 percent of the vote. The current 1 percent sales tax levy began in 1988 and was subsequently extended through December 2032. The sales tax will continue to be divided equally among the county, school district, and cities. County projects paid for through these funds include public safety vehicles and equipment; sidewalk and road improvements; parks, trails, and recreation; water quality, and other infrastructure needs.

Property Taxes

The county assesses and collects ad valorem taxes to fund the following activities: general government functions, public lands debt service, and three Municipal Services Taxing Units (MSTU) for ambulance services, fire and rescue services, and stormwater, parks, and roads.

The proposed "aggregate millage" for all BCC taxing districts is 5.9802 mills, which represents an 8.64 percent increase over the current year "aggregate" roll back millage of 5.5048 mills. The change has been calculated using the current year proposed aggregate millage rate divided by the current year aggregate rolled-back rate per Florida Department of Revenue DR-420.

Lake County
Comparison of Proposed Millages to Rollback Rate

Taxing District	FY 2023 Millage Rate	FY 2024 Rollback Rate	FY 2024 Proposed Millage Rate	Proposed Millage as a % Change of Rollback Rate
Countywide Funds				
General	5.0364	4.6102	5.0364	9.24%
Lake County Ambulance MSTU	0.4629	0.4237	0.4629	9.25%
Special Taxing Districts				
Stormwater, Parks and Roads MSTU	0.4957	0.4513	0.4957	9.84%
Lake County Fire Rescue MSTU	0.5138	0.4696	0.5138	9.41%
Lake County Wellness Way MSTU*	N/A	N/A	0.0000	N/A
Total All Funds	6.5088		6.5088	
Public Lands - Voted Debt**	0.0918		0.0918	

*The Lake County Wellness Way MSTU is new for Fiscal Year 2024.

**Lake County voters approved a public-lands referendum on November 2, 2004, for up to an additional one-third millage for the acquisition and improvement of public lands.

Debt

At the end of 2022, the county had a total of $96 million in bonded debt outstanding, of which $9.5 million were limited general obligation bonds and $86.4 million in revenue bonds. The limited general obligation bonds were issued to acquire and improve lands within the county, to protect drinking water sources, preserve natural areas and protect open space from overdevelopment, and are secured by ad valorem taxes authorized by Lake County voters in 2004.

The capital improvement revenue bonds were issued to fund county-wide recreation projects, fund the expansion of the courthouse, and for other governmental buildings in downtown Tavares and are secured by specific revenue sources, such as the half cent sales tax and sales tax.

The sales surtax revenue and refunding bonds were issued to provide funds to construct a new animal shelter and upgrade the county's public safety radio network. The bond also provides $10 million for road resurfacing projects. The bond is secured by the one-cent local government infrastructure sales surtax.

In August 2022, the county received an upgrade from Fitch Ratings Service on the outstanding capital improvement revenue bonds to "AA" from "AA-". In addition, Fitch affirmed the county's Issuer Default Rating at "AA". The state statutes do not place specific limits on the amount of debt that can be incurred by a community.

LONG-TERM DEBT OUTSTANDING AMOUNTS & MATURITY DATES

(in thousands)

DESCRIPTION	OUTSTANDING AMOUNT	MATURITY DATE
Limited General Obligation Bond, 2015	$9,575	2026
Capital Improvement Revenue Bond, 2015A	11,835	2026
Capital Improvement Revenue Bond, 2015B	49,355	2037
Sales Tax Refunding (Pari-Mutuel Replacement) Bond, 2011	1,755	2030
Sales Surtax Revenue and Refunding Bond, 2019	23,450	2032
Total	**$95,970**	

Office of Parks and Trails

The Office of Parks & Trails manages the county's parks and paved trails, conservation lands, boat ramps, and Blueway trails.

In 2004, Lake County voters approved a public lands referendum with an additional one-third millage to allow the county to issue $36 million in bonds to acquire and improve land. The purpose of such acquisitions is to protect drinking water, improve water quality of rivers and lakes, protect open areas, and provide recreation areas. To date, nearly 3,000 acres have been acquired. Properties acquired were evaluated based on criteria in three areas of primary concern: enhancing water resources; protecting environmentally sensitive lands; and providing passive recreational lands.

In 2005, Lake County created the Public Lands Management Program, to assist the Public Land Acquisition Advisory Council which was responsible for acquisitions and improvements of public lands. The advisory council was dissolved in April 2011 having fulfilled its purpose. All the funds from the 2004 referendum have been exhausted. See Appendix A for a list of property acquisitions and Appendix B for a map of existing trails and public access conservation areas.

Lake County Water Authority

Lake County Water Authority (LWCA) is a non-regulatory, state-created agency assigned to conserve and protect freshwater resources and to better the aquatic ecosystem and environment in Lake County. The agency built and operates a Nutrient Reduction Facility (NuRF) that removes phosphorus and other nutrients flowing from Lake Apopka and releases improved water downstream to the Harris Chain of Lakes. Since 1989, the Water Authority has acquired over 7,500 acres of land for protection, either through purchase or donation. Of the 7,500 acres, approximately 79 percent are considered wetlands and the remaining 21 percent uplands support recreational opportunities. In addition, the agency has provided almost $10 million in matching funds for stormwater improvement projects in the cities and the county.

In 2022, the local legislative delegation authored a bill to remove LCWA's independent status and place the agency under the control of the Lake County Board of County Commissioners. HB 1105 changed the organizational structure of the Authority to a Dependent Special District of Lake County and created a 5 member appointed Board.

LWCA revenues consist primarily of ad valorem taxes, which were $ 8,313,838 in 2022. Other revenues include interest of $ 92,622, charges for services of $ 17,329, and miscellaneous revenue of $ 143,686. Current expenses consist of general operating expenses of $ 3,442,708 and grants of $ 692,675 for water

quality, waterway improvement and education. The general fund balance was $ 16,763,835 on September 30, 2022. Physical environment expenditures were below final budget by approximately $8.4 million of which operating expenses were below budget by approximately $ 4.4 million due to funds being allocated for future projects at the nutrient reduction facility. For Fiscal Year 2022 the statutory maximum tax rate which may be assessed by the Authority for ad valorem millage is 0.5 mills. The proposed levy for FY 2023 was 0.3083 mills which was estimated to generate roughly $9.2 million in revenue.

The Water Authority currently has 26 properties with 19 of them open to the public for various recreational activities on land and on the water.

The Florida Wildlife Corridor

The Florida Wildlife Corridor comprises nearly 18 million acres of contiguous wilderness and working lands crucial to the survival of many of Florida's 131 imperiled animals. In addition to protecting wildlife, conserving wild spaces is crucial to mitigating climate change, as studies show that natural spaces play a significant role in reducing greenhouse gases and guarding against the impacts of increased temperatures.

In 2021, the Florida Wildlife Corridor Act passed by the state Legislature formally recognized the geography of the Florida Wildlife Corridor. The Legislature has budgeted nearly $2 billion for protecting land in the Corridor since 2021. As of September 2023, 46 properties totaling over 162,000 acres have been approved for protection in or adjacent to the Corridor.[4]

The Florida Wildlife Corridor refers to the conserved lands and opportunity areas defined as Priority 1, 2 and 3 of the Florida Ecological Greenways Network (FEGN). The FEGN is a statewide database that identifies and prioritizes a functionally connected statewide ecological network of public and private conservation lands. It is the primary data layer used to inform the Florida Forever, Rural and Family Lands Protection Program and other state, federal, and regional land acquisition programs regarding the most important ecological corridors and intact landscapes across the state for protection of Florida's native wildlife, ecosystem services, and ecological resiliency. It identifies "opportunity areas," which are lands and waters within the wildlife corridor that are not conserved lands, and green spaces within the corridor which lack conservation status and/or are contiguous or between conserved lands.

Lake County is part of the Florida Wildlife Corridor, and it is important to residents' quality of life, economies, and nature. The Lake County Public Lands Management Program assists in developing policies that guide the acquisition and management of environmental and recreational public lands. Approved by voters in the mid-2000s, the program also serves to acquire and improve land by enhancing water resources, protecting environmentally sensitive land and providing recreational land.

Of the county's 740,458 acres, 112,651 acres are Opportunity Areas in the Florida Wildlife Corridor. See Appendix C for a map of the Corridor Opportunity Areas.

Choosing a Local Funding Strategy

Generally, there are three primary types of revenue sources available to local governments to pay for parks, trails, and recreation: discretionary annual spending, creation of dedicated funding streams, and debt financing. The financing options utilized by a community will depend on a variety of factors such as taxing capacity, budgetary resources, voter preferences, and political will.

[4] Florida Wildlife Corridor Foundation, https://floridawildlifecorridor.org/about/about-the-corridor/

Significant, dedicated funding generally comes from broad-based taxes and/or the issuance of bonded indebtedness, which often require the approval of voters. In TPL's experience, local governments that create funding via the budget process often provide substantially less funding than those that create funding through ballot measures. As elected officials go through the process of making critical budgetary decisions, funding for land conservation often lags behind other public purposes, and the amount appropriated tends to be less than what voters would support. It is understandably often difficult to raise taxes without an indisputable public mandate for the intended purpose.

Ballot measures provide a tangible means to implement a local government's vision. With their own funding, local governments are better positioned to secure scarce funding from state or federal governments or private philanthropic partners. In addition, having a predictable funding source empowers the local jurisdiction to establish long-term parks and recreation priorities that meet important community goals and values.

Nationwide, a range of public financing options has been utilized by local jurisdictions to fund parks, trails, and open space, including general obligation bonds, the local sales tax, and the property tax. The ability of local governments to establish dedicated funding sources depends upon state enabling authority.

Public Finance Options in Florida

Florida History of Conservation Finance

The State of Florida authorizes local communities to use various revenue sources for parks and recreation purposes including property taxes, sales and use taxes, general obligation bonds, and the creation of special districts. Voters approved 82 percent of local conservation finance measures (79 of 96) on the ballot in Florida between 1996 and 2020. General obligation bonds are the most popular public finance mechanism in Florida for parks and conservation. The table above illustrates the number and type of conservation finance measures that have gone before voters over the past 24 years.

Local Conservation Finance Mechanisms in Florida

Summary of local ballot measures from 1996-2020

Mechanism	# Passed	# Failed	Total	% Passed
Bond	52	7	59	88%
Sales Tax	14	8	22	64%
Property Tax	11	2	13	85%
Other*	2	0	2	100%
Total	79	17	96	82%

**Budget allocations*

Source: TPL LandVote Database - measures that include $ for land conservaton.

Since 1988, 26 counties in Florida have received voter approval to dedicate funding for land conservation. Many counites, including neighboring Polk, Seminole, and Volusia counties, have received approval for multiple ballot measures to renew funding for their land conservation programs. In 2004, Lake County voters approved a $36 million bond for land conservation by 71 percent. Most recently, voters in 2022, Alachua, Brevard, Indian River, Nassau, Pasco, and Polk counties approved dedicated funding for land conservation.

General Obligation Bonds

Florida counties and municipalities are authorized to issue debt for capital projects including parks, trails, and open space in the form of general obligation bonds.[5] The state statutes do not place specific limits on the amount of debt that can be incurred by a community but do limit the duration of the bonds to a period

[5] Florida Constitution, Article VII, Section 12(a) and Florida Statutes, Section 125.013.

not exceeding 40 years. When bonds have been issued, the governing body must levy annually a tax upon taxable property in the jurisdiction sufficient to pay the debt service and interest on the bonds.[6]

General Obligation Bond for Parks, Trails, and Conservation

Lake County could consider issuing general obligation bonds for land conservation, trails, and parks. The table below illustrates the estimated annual debt service, required property tax rate, and annual household cost of various general obligation bond issue amounts that could be considered by the county. For example, a $50 million bond would add about $4 million to the county's annual debt service and would cost approximately $21 per year for the average homeowner over the life of the bond (20 years).

Lake County Bond Financing Estimates								
Bond Issue	Rate	Maturity (years)	Annual Debt Service	Total Taxable Value	Mill Levy Required	Average SFR Taxable Value	Annual Cost for Median Home	Monthly Cost for Median Home
$40,000,000	5.0%	20	$3,209,703	$34,841,004,158	$0.0921	$185,559	$17	$1.42
$50,000,000	5.0%	20	$4,012,129	$34,841,004,158	$0.1152	$185,559	$21	$1.78
$75,000,000	5.0%	20	$6,018,194	$34,841,004,158	$0.1727	$185,559	$32	$2.67
$100,000,000	5.0%	20	$8,024,259	$34,841,004,158	$0.2303	$185,559	$43	$3.56
$120,000,000	5.0%	20	$9,629,110	$34,841,004,158	$0.2764	$185,559	$51	$4.27
$150,000,000	5.0%	20	$12,036,388	$34,841,004,158	$0.3455	$185,559	$64	$5.34
Source: Lake County Property Appraiser								

The Trust for Public Land's bond cost calculations provide a basic estimate of debt service, tax increase, and cost to the typical homeowner in the community of potential bond issuances. Assumptions include the following: the entire debt amount is issued in the first year and payments are equal until maturity; 20-year maturity; and a conservative 5.0 percent interest rate. The property tax estimates assume that the jurisdiction would raise property taxes to pay the debt service on bonds. The cost per household represents the maximum estimated annual impact of increased property taxes levied to pay the debt service. The estimates do not take into account growth in the tax base due to new construction, annexation over the life of the bonds, or the possibility that the jurisdiction will sell bonds only as needed for specific projects, rather than all at once. The annual debt service and cost per household are the maximum tax impacts that could occur if the entire debt amount is issued at once. The jurisdiction's officials, financial advisors, bond counsel and underwriters would establish the actual terms of any bond.

Enactment procedures

The County Commission must call a referendum election prior to the issuance of bonds.[7] There must be at least 30 days' notice published in the local newspaper of general circulation.[8] Bond elections may be held concurrently with any general or primary election or concurrently on the day of any election of a county, district, or municipality for any purpose other than the purpose of voting on such bonds.[9] General elections are held on the first Tuesday after the first Monday in November of each even numbered year.[10]

Special elections may also be called after the supervisor of elections consents.[11] In any special election or referendum not otherwise provided for there shall be at least 30 days' notice of the election or referendum by publication in a newspaper of general circulation in the county. The publication shall be made at least twice, once in the fifth week and once in the third week prior to the week in which the election or referendum is to be held.

[6] [6] Chapters 100 and 130, and Section 200.181, *Florida Statutes*.
[7] Section 100.211, F.S.
[8] Section 100.342, F.S.
[9] Section 100.261, F.S.
[10] Section 100.031, F.S.
[11] Section 100.151, F.S.

Ballot Language

For public measures submitted to voters, a summary must be printed in clear and unambiguous language on the ballot following the list of candidates. The summary shall be an explanatory statement of the chief purpose of the measure, not exceeding 75 words in length, and must be followed by the word "yes" (to indicate approval) and the word "no" (to indicate rejection). The ballot title shall consist of a caption, not exceeding 15 words in length, by which the measure is commonly referred to or spoken of.[12]

In addition, county and municipal bond measures in Florida must abide by the "single subject" rule, such that funding for distinct purposes must appear as separate questions on the ballot unless they are sufficiently related.[13]

Finally, bond expenditures are limited to capital projects and may not be used for operations and maintenance purposes. Federal regulations governing the issuance of tax-exempt bonds limit the use of proceeds to capital purposes such that only a small fraction (up to 5 percent) of bond funds may be used for maintenance or operations directly related to the funded facilities. Treas Reg 1.148-6(d)(3)(ii)(A)(5).[14] State and local laws may further limit the use of bond proceeds.

Bonds with Additional Property Tax Authority for Operations

A single ballot question may authorize bonding authority and a millage levy, the excess of which can be used for operations and maintenance. The portion of the voted millage necessary to pay debt service must be treated as debt service millage and the excess portion must be treated as general millage. The portion treated as general millage must be included within the millage levied under the county or municipal 10-mill limitation."

The statutory authority comes from F.S. 200.18:

> *"200.18 Bond payments; tax levies; restrictions.—*
>
> *(1) None of the provisions of this chapter or of any other law, whether general, special or local or of the charter of any municipality or county, shall limit or restrict the rate or the amount of the ad valorem taxes levied for the payment of the principal of and the interest on any debt service whether secured by revenue certificates or by bonds for which the full faith and credit of any county, municipality or taxing district may be pledged, and such taxes shall be in addition to all other taxes authorized or limited by law.*
>
> *(2) Nothing in this section shall prevent any municipality, county or school board from levying at least 5 mills of ad valorem tax during any fiscal year.*

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[12] F.S. § 101.161.

[13] State v. Dade County, 39 So.2d 807 (1949); Winterfield v. Town of Palm Beach, 455 So.2d 359 (1984); State v. City of St. Augustine, 235 So.2d 1 (1970); Grapeland Heights Civic Ass'n v. City of Miami, 267 So.2d 321 (1972) The single-purpose rule was adopted by the Florida Supreme Court in Antuono v. City of Tampa, 87 Fla. 82, 99 So. 324 (1924). The rule was stated as follows: If there are two or more separate and distinct propositions to be voted on, each proposition should be stated separately and distinctly so that a voter may declare his opinion as to each matter separately, since several propositions cannot be united in one submission to the voters so as to call for one assenting or dissenting vote upon all the propositions; and elections are invalid where held under such restrictions as to prevent the voter from casting his individual and intelligent vote upon the object or objects sought to be obtained.

[14] (A)*General de minimis exception.* Paragraph (d)(3)(i) of this section does not apply to expenditures to pay -
(1) Any issuance costs of the issue or any qualified administrative costs within the meaning of §§ 1.148-5(e)(2) (i) or (ii), or § 1.148-5(e)(3)(ii)(A);
(2) Fees for qualified guarantees of the issue or payments for a qualified hedge for the issue;
(3) Interest on the issue for a period commencing on the issue date and ending on the date that is the later of three years from the issue date or one year after the date on which the project is placed in service;
(4) Amounts paid to the United States under §§ 1.148-3, 1.148-5(c), or 1.148-7 for the issue;
(5) Costs, other than those described in paragraphs (d)(3)(ii)(A) (*1*) through (*4*) of this section, that do not exceed 5 percent of the sale proceeds of an issue and that are directly related to capital expenditures financed by the issue (e.g., initial operating expenses for a new capital project);

(3) A county or municipality may levy voted millage at the maximum millage rate approved by referendum even if the levy would raise revenue in excess of that necessary for debt service as authorized by a vote of the electors pursuant to s. 12, Art. VII of the State Constitution. The county or municipality may use the surplus revenue for any lawful purpose solely related to the capital project for which the voted millage was approved, including operations and maintenance. For purposes of this chapter, the portion of the voted millage necessary to pay debt service must be treated as debt service millage and the excess portion must be treated as general millage. The portion treated as general millage must be included within the millage levied under the county or municipal 10-mill limitation."

Examples of bonds and operations backed by property tax

1. November, 2020 bond in Manatee County, Florida

Manatee County Bond Referendum
Water Quality Protection, Fish and Wildlife Habitat Preservation, and Park Ad Valorem Tax and Bonds
To finance the acquisition, improvement, and management of land to protect drinking water sources and water quality, preserve fish and wildlife habitat, prevent stormwater runoff pollution, and provide parks, shall Manatee County levy an additional 0.15 mill ad valorem tax and issue general obligation bonds in a total principal amount not exceeding $50,000,000, maturing within 20 years, bearing interest not exceeding the legal rate, payable from such ad valorem taxes, with annual public audits? Passed with 71%

2. November, 2008 Bond in Flagler County

Flagler County, Florida Clean Water and Environmentally Sensitive Land Preservation

Clean Water and Environmentally Sensitive Land Preservation

To continue to acquire and improve land to protect drinking water sources, preserve wildlife habitat and environmentally sensitive lands, reduce risk of wildfires, improve water quality of lakes, streams and the Intracoastal Waterway, and seek matching funds, shall Flagler County be authorized to levy 0.25 mill ad valorem tax for twenty years and issue bonds not exceeding $40 Million at interest rates not exceeding the legal maximum, subject to an annual independent audit? Passed with 65%.

Imposing a mill levy with bond authority in Lake County

The table below illustrates the revenue potential from levies ranging from 0.20 mills to 0.30 mills. A 0.20 mill levy, for example, would generate approximately $6.9 million annually at a cost of roughly $37 a year to the average homeowner in the county. A $50 million bond with a 20-year maturity would require roughly $4 million of this annual revenue stream, leaving approximately $2.9 million per year to support operations, restoration, and maintenance.

Lake County Bond Financing Estimates							Additional Millage		
Bond Issue	**Interest Rate**	**Maturity (Years)**	**Annual Debt Service**	**Total Taxable Value**	**Required Millage**	**Annual Cost for Avg. Home***	**Remaining from $0.2 Millage**	**Remaining Revenue**	**Total Annual Cost for Avg. Home***
$50,000,000	5%	20	$4,012,129	$34,841,004,158	0.1152	$21	0.08484	$2,956,071	$37
							Remaining from $0.25 Millage		
$75,000,000	5%	20	$6,018,194	$34,841,004,158	0.1727	$32	0.07727	$2,692,057	$46
							Remaining from $0.3 Millage		
$100,000,000	5%	20	$8,024,259	$34,841,004,158	0.2303	$43	0.06969	$2,428,043	$56

**Average home taxable value = $185,559.*
Source: Lake County Property Appraiser Tax Roll Data

Elections

The Lake County General Election will be held on Tuesday, November 5, 2024. County voters will elect three Commissioners in this election.

Election dates for 2024 are:

- Presidential Preference Primary Election: March 19
- Primary Election: August 20
- General Election: November 5

2022 General Election Calendar

2024 SCHEDULED COUNTYWIDE ELECTIONS	DEADLINE FOR CANDIDATE QUALIFYING TO END	DEADLINE TO SUBMIT RESOLUTION AND/OR ORDINANCE TO THE SUPERVISOR OF ELECTIONS FOR CHARTER AMENDMENTS OR ANY OTHER QUESTIONS
PRESIDENTIAL PREFERENCE PRIMARY ELECTION **March 19, 2024**	**No later than Friday, December 1, 2023**	**No later than Friday, December 1, 2023**
PRIMARY ELECTION August 20, 2024	**No later than Friday, June 14, 2024** *(Same as Federal, State, and County offices)*	**No later than Friday, May 24, 2024**
GENERAL ELECTION November 5, 2024	**No later than Friday, August 23, 2024**	**No later than Friday, July 26, 2024**

Election Results History

Election results can often be helpful in gauging voter support for capital projects and tolerance for public spending. The available financing options covered in this report require voter approval. As such, an examination of election history on similar fiscal questions can be instructive. Still, past election results are not necessarily indicative of current voter sentiment on public financing, nor on a particular proposal. Lake County voters have been asked to approve just one tax/bond/budget-related ballot measure over the past few years. In 2004, the Lake County Board of County Commissioners referred a $36 million bond for land conservation to the November ballot. Lake County voters approved the bond referendum by 71 percent. In 2014, Lake County voters approved the Water and Land Conservation constitutional amendment, (2014 Amendment 1) which dedicated one-third of the state's real estate transfer tax to land conservation,

management, and restoration, by 70 percent. In November 2022, the school district proposed a continuation of a 0.75 percent mill levy for school safety and mental health. Voters approved the measure with 56 percent support. According to news coverage of the election, the levy would cost the average homeowner with an estimated home value of $250,000 approximately $187 per year.[15]

Voter Turnout

Lake County Voter Turnout			
Election	Registered Voters	Ballots Cast	% Turnout
Nov-22	276,189	160,572	58%
Aug-22	271,802	66,367	24%
Nov-20	264,691	212,505	80%
Aug-20	253,490	62,436	25%
Mar-20	175,150	54,630	31%
Source: Lake County Supervisor of Elections, accessed 10/28/23			

Voting Methods and Technology[16]

Vote by Mail

The deadline to request a Vote-by-Mail ballot to be mailed is 5:00pm on the 12th day before the election, and the deadline to pick up a Vote-by-Mail ballot is close of business on the 11th day before the election.

Vote-by-Mail ballots must be received by the Supervisor of Elections office no later than 7:00pm on Election Day.

Early Voting Dates and Times

Early Voting Dates and Times for the 2024 Presidential Preference Primary Election
- Dates: March 7th to March 16th
- Time: 10:00am - 6:00pm

Early Voting Dates and Times for the 2024 Primary Election
- Dates: August 8th to August 17th
- Time: 10:00am - 6:00pm

Early Voting Dates and Times for the 2024 General Election
- Dates: October 21st to Nov 2nd
- Time: 10:00am - 6:00pm

2024 Vote-by-Mail Ballot Drop Off

Voters who wish to deposit their voted mail ballot may do so inside any Early Voting site during the early voting periods (3/8 - 3/16; 8/8 - 8/17; 10/21 - 11/2) between the hours of 10:00 A.M. and 6:00 P.M.

[15] https://www.clickorlando.com/results-2022/2022/11/09/lake-county-voters-pass-school-safety-tax-measure/
[16] Lake County Supervisor of Elections > Voter Information > Information for Voting on Election Day (lakevotes.com)

Equipment Used on Election Day / Early Voting

DS200
The DS200 is a precinct-based ballot scanner and vote tabulator that combines the flexibility and efficiency of digital-imaging technology to support paper-based voting.

ExpressVote
The paper-based ExpressVote Universal Voting System uses touch-screen technology that produces a paper record for tabulation.

EViD (Electronic Voter Information Device)
Electronic Precinct Register used to check voters in.

Appendix A

PROPERTY ACQUISITIONS

Dead River Road Regional Stormwater Pond	**Size: 8.6 acres** General location: east of Dead River Road, near Lake Harris **Purchase price: $1.165 million** *(joint acquisition with Stormwater Division)*
Ellis Acres Reserve	**Size: 411 acres** General location: south of County Road 42 in the Paisley community **Purchase price: $6.553 million**
Helena Run Preserve	**Size: 18 acres** General location: east of U.S. Highway 27 on Helena Run and Lake Harris **Purchase price: $ 123,840**
Lady Lake Preserve	**Size: 63.94 acres** General location: west of Grays Airport Road near the Town of Lady Lake **Purchase price: $214,000**
Lake May Reserve	**Size: 136 acres** General location: northeast of the City of Eustis on County Road 44A **Purchase price: $6.2 million**
Mt. Plymouth Lakes	**Size: 184 acres** General location: Mount Plymouth community **Purchase price: donation**
Northeast Lake County Scrub Preserve	**Size: 60 acres** General location: north of Royal Trails near the Seminole State Forest Purchase price: $950,000
The Pasture Reserve	**Size: 809 acres** General location: Lake Erie Road in the Green Swamp **Purchase price: $6.676 million**
South Pine Lakes Reserve	**Size: 128 acres** General location: Pine Lakes community adjacent to Seminole State Forest **Purchase price: $985,250**

PROPERTY PARTNERSHIPS

Size: 1,584 acres in Lake and Orange counties

General location: East Lake County, near the community of Mount Plymouth (Neighborhood Lakes)
Lake County's portion: $5 million

Other agencies:
Florida Department of Environmental Protection, St. Johns River Water Management District, Orlando-Orange County Expressway Authority and Orange County.

PROPERTY GRANTS

Size: 200 acres

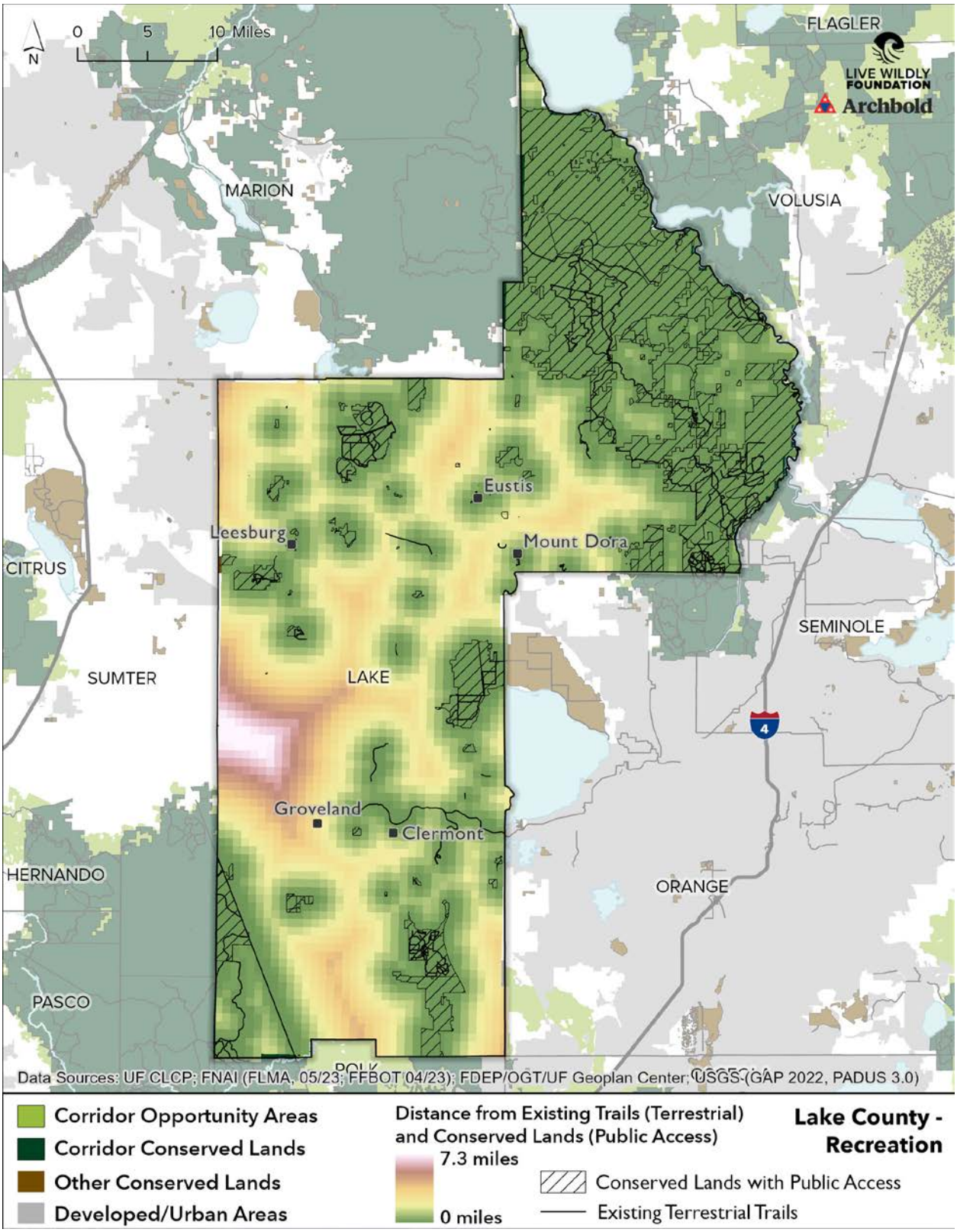
General location: County Road 561 to the west of Lake Minneola

PROPERTY MAP

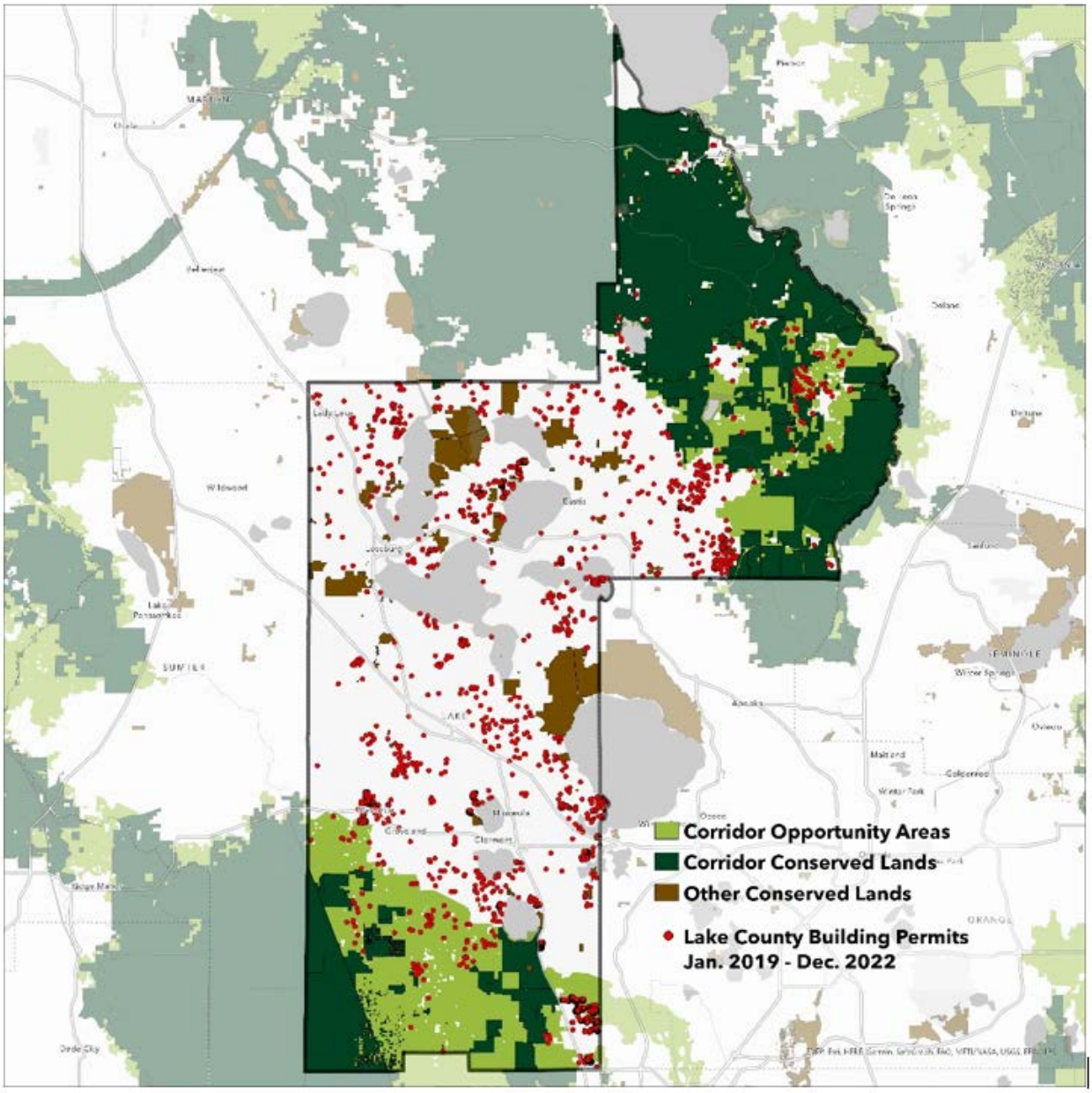
LAKE COUNTY FLORIDA

DEPARTMENT OF PUBLIC RESOURCES
Parks & Trails Division
315 W. Main St., Tavares, FL 32778
Phone: (352) 253-4950

Appendix B


0
5
10 Miles
N
FLAGLER
LIVE WILDLY FOUNDATION
Archbold
MARION
VOLUSIA
Eustis
Leesburg
Mount Dora
CITRUS
SEMINOLE
SUMTER
LAKE
4
Groveland
Clermont
HERNANDO
ORANGE
PASCO
Data Sources: UF CLCP; FNAI (FLMA, 05/23; FFBOT 04/23); FDEP/OGT/UF Geoplan Center; USGS (GAP 2022, PADUS 3.0)
Corridor Opportunity Areas
Corridor Conserved Lands
Other Conserved Lands
Developed/Urban Areas
Distance from Existing Trails (Terrestrial) and Conserved Lands (Public Access)
7.3 miles
0 miles
Conserved Lands with Public Access
Existing Terrestrial Trails
Lake County - Recreation

Appendix C



Source: Archbold.

With any questions or for more information please contact:

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or

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